

decision.²⁹³ In the Latin cross case, Justice Ginsburg's numbers are quite clear: she notes that of the forty World War I displays in the United States that include a Latin cross only constitute four percent of the World War I monuments in the nation.²⁹⁴

The fourth question is again key. If the data shows that the Latin cross is heavily associated with World War I, the Justices can use information in the weight of the analysis, but the basic question still is whether its use sends a message to non-Christians (in this case) that they are outsiders to the political system, or does the context of the Latin cross reduce or eliminate that message?

To be fair to Justice Alito, in his Latin Cross opinion, he also stated:

The cross came into widespread use as a symbol of Christianity by the fourth century, and it retains that meaning today. But there are many contexts in which the symbol has also taken on a secular meaning. Indeed, there are instances in which its message is now almost entirely secular.²⁹⁵

The proposed test does not eliminate the ability of the Court to make reasoned judgments, nor does it eliminate the possibility for disagreement. It does, however, give guidance to the Court on how to approach a religious symbol case. It takes current Establishment Clause jurisprudence, especially the endorsement modification of the *Lemon* test,²⁹⁶ and applies some trademark principles to help the Court assess the message that the symbol sends to the public.

CONCLUSION

The U.S. Supreme Court's Establishment Clause jurisprudence, particularly with regard to religious symbols, is a complicated body of multiple tests and pronouncements.²⁹⁷ When determining whether a governmental use of a purported religious symbol violates the Establishment Clause, the Court can use some basic trademark principles to help articulate its positions and results.²⁹⁸ The articulated approach proposed in this Article incorporates those principles to assist a court in systematically evaluating a symbol to determine if it is a religious symbol, if it has any prominent secular affiliations or meanings, and whether the context of the use violates the Establishment Clause. This proposal is not a magic formula that will ensure total predictability in Establishment Clause cases but it should assist the Court in assessing the key underlying issues in an establishment question regarding the effect of the government's interaction with religion and whether it "establishes" religion.

²⁹³ *Am. Legion v. Am. Humanist Ass'n*, 139 S. Ct. 2067, 2079 (2019); *id.* at 2102–04 (Ginsburg, J., dissenting).

²⁹⁴ *Id.* at 2111 (Ginsburg, J., dissenting).

²⁹⁵ *Id.* at 2074 (majority opinion).

²⁹⁶ *See supra* notes 10–13 and accompanying text.

²⁹⁷ *See supra* Section I.B.

²⁹⁸ *See supra* Section III.A.